

प्रश्नों की संख्या दीजिए

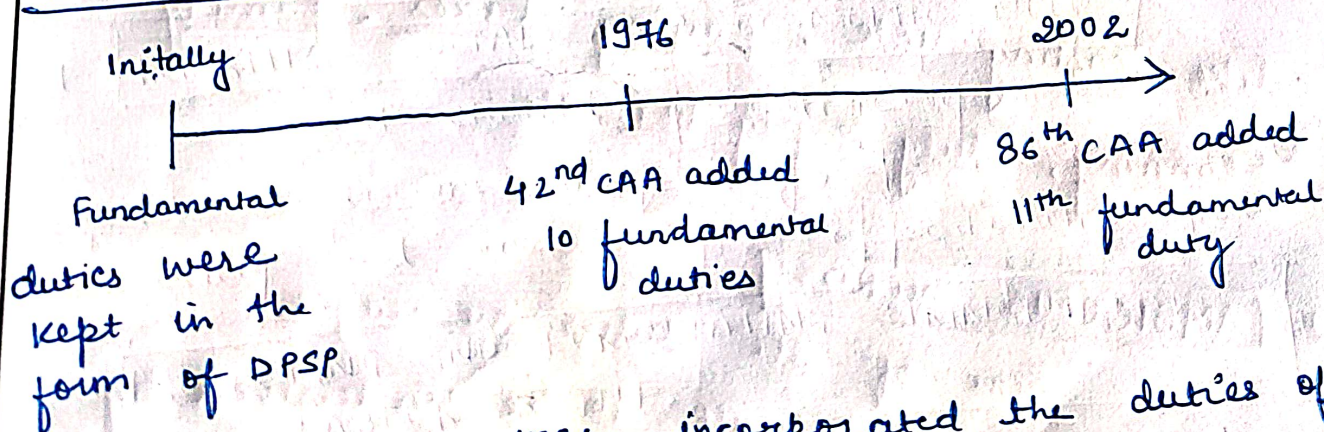
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Q. The fundamental duties were incorporated in the constitution to balance citizens' rights with responsibilities." Critically analyze the evolution, significance, and legal enforceability of fundamental duties in India. 38 Marks.

The balance of rights and duties forms the backbone of a stable and functioning democracy. Being citizen of a state, it provides an individual with rights and duties. In India duties are of moral binding in nature not as coercive.

Fundamental duties in Indian constitution is incorporated through 42<sup>nd</sup> CAA on the recommendation of Swaran Singh committee as Part IV A and article 51A.

### EVOLUTION



1. Constitution makers incorporated the duties of state in the constitution in the form of DPSP.

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2. In 1976, Sardar Swaran Singh committee recommended incorporation of 8 FDs but through 42<sup>nd</sup> CAA, adopted 10 fundamental duties. Some of the recommendation of committee were not incorporated like duty to pay tax etc.

3. In 2002, through 86<sup>th</sup> CAA, 11<sup>th</sup> fundamental duties is being added.

## SIGNIFICANCE OF FUNDAMENTAL DUTIES

### 1. REMINDER OF RESPONSIBILITY

It reminds citizen that while enjoying their rights, they should also be conscious of duties they owe to their country.

### 2. PROMOTE NATIONALISM AND PATRIOTISM

It serve as a warning against the anti-national and antisocial activities like burning the national flag, destroying public properties etc.

### 3. CONSTITUTIONAL VALIDITY OF LAW

It helps the court in examining and determining the constitutional validity of law.

### 4. LEGISLATIVE MANDATE

They are enforceable by law. Parliament can provide for the imposition of appropriate

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penalty or punishment.

## LEGAL ENFORCEABILITY OF FUNDAMENTAL DUTIES

Verma committee was appointed in 1989, which provided that F.D can be implemented through an act, and there are various laws which are already implementing one or more duties.

Example →

1. Prevention of insult to nation honour act
2. Prevention of damage to public property act, 1984.
3. Environment protection act, wildlife protection act etc.

## CRITICISM

### 1. MYOPIC INCORPORATION

It doesn't cover other important duties like casting vote, paying taxes, family planning, duty to pay tax etc.

### 2. AMBIGUOUS WORDS

Some of the duties are vague, ambiguous and difficult to be understood by the common man.

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E.g :- Different interpretation can be given to:  
'noble ideals', 'composite culture' etc.

### 3. NON-JUSTICIABLE CHARACTER

It has been described by the critics as a code of moral precepts due to their non-justiciable character.

### 4. CRITICISED AS SUPERFLOUS

It is described as superfluous by critics. It is because the duties are included in the constitution as fundamental would be performed by the people even though they were not incorporated in the constitution.

### 5. FRIVOLOUS IN NATURE

The critics pointed out that inclusion of fundamental duties as Part IV A as an appendage to Part IV which reduced its significance and value.

Thus, despite being non-justiciable in nature, S.C in AIIMS student union case held that FDs are equally important as FR. As rightly held by S.C in Rangnath Mishra case duties should not be enforced by legal sanction but also by social sanction and the very fact that these duties appeared

in the constitution keeps the door open for them to be given higher constitutional status through amendment

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ERIVOLONG IN NATURE

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